

23CHCV01019 23CHCV01019

County: los-angeles

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Case Number: 23CHCV01019 Hearing Date: September 23, 2026 Dept: F43

Dept. F43

Hearing Date: 09-23-26

Case # 23CHCV01019, Venegas v. American
Honda Motor Co.

Trial Date: N/A

MOTION FOR ATTORNEY
FEES

MOVING PARTY:
Plaintiff Giovanna Oceguela Venegas

RESPONDING PARTY: Defendant American Honda Motor Company

RELIEF REQUESTED

Order awarding plaintiff \$11,778 in attorney
fees and a 1.25 enhancer of \$1,944.63.

RULING: Motion is granted in the reduced amount of
\$9,005 in attorney fees. The court
reserves ruling on Plaintiff's costs and expenses.

SUMMARY OF ACTION

On April 10, 2023, plaintiff Giovanna Ocegüera Venegas (Plaintiff) filed this lemon law action against defendant American Honda Motor Company (Defendant), concerning issues in a 2020 Honda Accord. Plaintiff asserted three violations of the Song-Beverly Consumer Warranty Act, including breaches of express and implied warranties. Defendant filed an answer on May 26, 2023. Since this matter was commenced, the parties litigated whether this matter is subject to arbitration, and Plaintiff filed two motions to enforce a settlement agreement.

On May 30, 2024, Plaintiff accepted Defendant's section 998 Offer to Compromise in the amount of \$46,000 plus attorney fees, costs, and expenses pursuant to a noticed motion. Plaintiff filed the notice of settlement on June 6, 2024.

On July 20, 2026, Plaintiff filed the instant motion seeking \$13,723.13 in attorney fees and a lodestar enhancement. Plaintiff also filed a memorandum of costs, seeking \$2,110.92. On September 10, 2026, Defendant filed an opposition, and Plaintiff replied on September 16, 2026.

ANALYSIS

A. Awarding Attorney Fees

A prevailing party is entitled to recover its attorneys' fees when authorized by contract, statute, or law. (See Code Civ. Proc., § 1033.5, subd. (a)(10); Civ. Code, § 1717, subd. (a).)

"A successful party means a prevailing party, and [a party] may be considered prevailing parties for attorney's fees purposes if they succeed on any significant issue in litigation which achieves some of the benefit the parties sought in bringing suit." (Bowman v. City of Berkeley (2005) 131 Cal.App.4th 173, 178.) If a buyer prevails in a Song-Beverly action, then the buyer is allowed to recover attorney fees. (Civ. Code, § 1794, subd. (d).)

Because Plaintiff is a "buyer" and this matter settled in Plaintiff's favor, Plaintiff is the prevailing party pursuant to Civil Code section 1794, subdivision (d).

Hourly Rates

Plaintiff requests hourly rates of \$350 to \$500 for counsel of record Quill & Arrow, LLP and \$210 for paralegal work. (Declaration of Kevin Y. Jacobson ¶¶ 46-65, Exh. 42.) To support the rates, Plaintiff presents an attorney declaration concerning counsel and paralegal qualifications and experience, several rulings approving similar rates, the Laffey Matrix, and Thomson Reuters' Law Firm Rates Report for 2026.

In opposition, Defendant asserts the supporting declaration is hearsay and relies on improper unpublished, nonbinding opinions of other courts. (Opp. at pp. 7:19-8:28.) Defendant also claims Plaintiff's supporting declaration fails to provide sufficient evidence to support the hourly rates and billed hours for Vivian Lee and Shawn Louis. Furthermore, the declaration includes templated assertions, cites three rulings that approve attorney Ardi's rate, and cites other rulings that bill rates for attorneys not named in this motion.

In responses, addresses the missing information concerning Vivian Lee (Quill & Arrow's former case director) and Shawn Louis (former law clerk at Quill & Arrow). (Reply Declaration of Kevin Y. Jacobson ¶ 11.) Plaintiff's reply also includes hours by attorney Derek Chipman at \$495 per hour. (Id. ¶¶ 14, 15(b).)

"The reasonable hourly rate is that prevailing in the community for similar work." (PLCM Group v. Drexler (2000) 22 Cal.4th 1084, 1095.) The moving party bears the initial burden of establishing the prevailing market "through its own affidavits." (MBNA Am. Bank, N.A. v. Gorman (2006) 147 Cal.App.4th Supp. 1, 13.) Once the moving party presents competent evidence of prevailing rates, the burden shifts to the opposing party. The opposing party may present rulings which concern hourly rates for comparable work from the relevant legal market. (Bronshteyn v. Dept. of Consumer Affairs (2025) 114 Cal.App.5th 537, 543, 546-547; Baer v. Tedder (2025) 115 Cal.App.5th 1139, 1160-1162.) The court must engage in an objective analysis "to determine the prevailing rate in the community for comparable professional legal services[.]" (Graciano v. Robinson Ford Sales, Inc. (2006) 144 Cal.App.4th 140, 156, citation omitted.) The court may "consider the attorney's skill as reflected in the quality of the work, as well as the attorney's reputation and status." (MBNA Am. Bank, N.A.,

supra, 147 Cal.App.4th Supp. at p. 13.)

After reviewing the parties' declarations, court rulings, and arbitration rulings, the court finds the hourly rates are reasonable with the exception of Vivian Lee and Shawn Louis because counsel includes no information about their experience or particular qualifications. The Reply Declaration merely states their titles, when they worked at the firm, and states the assigned rates are appropriate because they are below that listed in the Laffey Matrix.

Attorney Name

Requested Hourly Rate

Approved Hourly Rate

Sarah Pfeffer

\$350 (2023)

\$350 (2023)

Donald Mahnke

\$350 (2023)

\$350 (2023)

David Derderian

\$350 (2024)

\$350 (2024)

Daniel Gopstein

\$395 (2024)

\$395 (2025)

\$425[1]

(2026)

\$395 (2024)

\$395 (2025)

\$425 (2026)

Jennifer Guardado

\$350 (2025)

\$350 (2025)

Ryan Ardi

\$400 (2025)

\$400 (2025)

Grayson Sobel

\$500 (2026)

\$500 (2026)

Stephanie Hovhannisyan

\$395 (2026)

\$395 (2026)

Derek Chipman

\$495 (2026)

\$495 (2026)

Paralegal

Requested Hourly Rate

Approved Hourly Rate

Vivian Lee

\$175 (2023)

None

Jasmine Perez

\$210 (2024)

\$210

Jiny Mun

\$210 (2025)

\$210

Shawn Louis

\$175 (2025)

None

2. Billing Entries

Plaintiff requests fees for 28.50 hours of attorney and paralegal work, including 11.3 hours for the instant motion.

The Song-Beverly Consumer Act only entitles Plaintiffs to attorney fees for “actual time expended.”

(Civ. Code, § 1794, subd. (d).)

This means an analysis as to whether the fees and costs sought are reasonable under the circumstances is required.

(Levy v. Toyota Motor Sales, USA, Inc. (1992) 4 Cal.App.4th 807, 816.) “A prevailing buyer has the burden

of 'showing that the fees incurred were 'allowable,' were reasonably necessary to the conduct of the litigation and were 'reasonable in amount.'" (Hanna v. Mercedes-Benz USA, LLC (2019) 36 Cal.App.5th 493, 507, citations omitted.) A verified fee bill is prima facie evidence that the services listed were necessarily incurred. (Hadley v. Krepel (1985) 167 Cal.App.3d 677, 682.) If a fee request is opposed, "[g]eneral arguments that fees claimed are excessive, duplicative, or unrelated do not suffice." (Premier Med. Mgmt. Sys. v. Cal. Ins. Guarantee Ass'n (2008) 163 Cal.App.4th 550, 564.) Once an objection to the fees has been raised, then plaintiff's counsel bears the burden of showing that the fees were reasonably necessary, and the court has the discretion to reduce fees awarded. (En Palm, LLC v Teitler Family Trust (2008) 162 Cal.App.4th 770, 775.)

In determining the reasonableness of fees, courts look to the factors from Church of Scientology v. Wollersheim (1996) 42 Cal.App.4th 628, disapproved on other grounds by Equilon Enters. v. Consumer Cause, Inc. (2002) 29 Cal.4th 53, 68 fn.5.

The factors from Wollersheim are (1) the amount of money involved in the litigation; (2) the nature of the litigation and its difficulty and the intricacies and importance of the litigation; (3) the skill required and employed in handling the litigation, the necessity for skilled legal training and ability in trying the case, and counsel's education and experience in the particular type of work involved; (4) the attention given to the case; (5) the success of the attorneys efforts; and (6) the time consumed by the litigation. (Id.)

Defendant asks the court to reduce billing entries due to counsel's use of template documents, excessive billing of time, and billing for clerical and administrative tasks such as filing and serving documents. Plaintiff's reply addresses several of these issues and provides actual hours incurred to review and reply to the opposition.

After reviewing Defendant's arguments, the parties' evidence and supporting declarations, and Defendant's billing entry reduction chart, the court reduces the attorney hours by 3.1 hours and the paralegal and staffing hours by 3.2 hours. Several entries involve clerical tasks and reviewing, drafting, or editing documents which appear excessive, and Plaintiff failed to provide sufficient support for awarding Vivian Lee and Shawn Louis hours. The court notes Defendant's repeated assertions concerning templated

documents. But Defendant has failed to produce evidence (such as template documents filed by Plaintiff's counsel in other cases) to support its assertions.

Attorney Name

Requested Hours

Approved Hours

Approved

Rate

Total

Sarah Pfeffer

0.2

0.2

\$350 (2023)

\$70

Donald Mahnke

3.3

3.3

\$350 (2023)

\$1,155

David Derderian

3.1

3.1

\$350 (2024)

\$1,085

Daniel Gopstein

0.7 (2024)

2.3 (2025)

0.6 (2026)

0.7 (2024)

1.6 (2025)

0.6 (2026)

\$395 (2024)

\$395 (2025)

\$425 (2026)

\$1,163.50

Jennifer Guardado

1.3

1.3

\$350 (2025)

\$455

Ryan Ardi

1.5

1.5

\$400 (2025)

\$600

Grayson Sobel

0.9

0.9

\$500 (2026)

\$450

Stephanie Hovhannisyan

4.9

4.0

\$395 (2026)

\$1,580

Derek Chipman

6.4

4.9

\$495 (2026)

\$2,425.50

Paralegal

Requested Hours

Approved Hours

Approved

Rate

Total

Vivian Lee

0.4

None.

None.

None.

Jasmine Perez

0.2

None.

\$210

None.

Jiny Mun

0.1

0.1

\$210

\$21

Shawn Louis

2.6

None.

None.

None.

Total approved attorney and paralegal fees: \$9,005

3. Lodestar Enhancement

After determining an appropriate lodestar figure, the court may determine whether that figure should be adjusted with a positive or negative multiplier. (*Doppes v. Bentley Motors, Inc.* (2009) 174 Cal.App.4th 967, 997.) Whether a multiplier or negative multiple is appropriate depends on several factors, including (1) the risks presented by the litigation; (2) the novelty and difficulty of the legal and factual issues involved; (3) the results obtained on behalf of the plaintiff; and (4) the skill exhibited by counsel. (*Consumer Privacy Cases* (2009) 175 Cal.App.4th 545, 556.) "The 'results obtained' factor can properly be used to enhance a lodestar calculation where [1] an exceptional effort produced [2] an exceptional benefit." (*Graham v. DaimlerChrysler Corp.* (2005) 34 Cal.4th 553, 582.)

With the revised attorney fee amount, the 1.25x enhancement is \$2,251.25.

Plaintiff contends the court should apply the 1.25x multiplier because counsel obtained an excellent outcome (a \$46,000 settlement plus attorney fees and costs) and took this matter at substantial risk (contingency, paying for all expenses up front, and without any guarantee of success). (Mot. at pp. 12:1-15:8.) In opposition, Defendant asks the court to deny the lodestar multiplier and apply a negative multiplier.

The court finds Plaintiff's arguments do not support

applying a multiplier because this is a simple Song-Beverly matter that settled in 13 months and the matter presented no complex or novel legal issues. Moreover, this matter was filed before Civil Code section 871.26, subdivision (e) went into effect.

Therefore, the court denies Plaintiff's request to apply a multiplier and Defendant's request to apply a negative multiplier.

B. Costs and Expenses

For the first time in the Reply, Plaintiff asks the court to include costs of \$2,110.92 in the fee award.
(Reply at p. 6:8-13; 7/20/2026 Memorandum of Costs.)

"A prevailing party who claims costs must serve and file a memorandum of costs within 15 days after the date of service of the notice of entry of judgment or dismissal by the clerk[.] The memorandum of costs must be verified by a statement of the party, attorney, or agent that to the best of his or her knowledge the items of cost are correct and were necessarily incurred in the case." (Cal. Rules of Court, rule 3.1700(a)(1).) Under the law, the court presumes a verified memorandum of costs is correct. However, a party may contest the costs that a prevailing party seeks. (Code Civ. Proc., § 1034 subd. (a).) The challenging party has the burden of demonstrating that those costs are unreasonable or unnecessary. (Adams v. Ford Motor Co. (2011) 199 Cal.App.4th 1475, 1486.)

The court cannot determine if the Memorandum of Costs was timely filed and served. Although Plaintiff billed hours for preparing and finalizing the notice of the court's conditional dismissal on January 21, 2026, neither the court docket nor Plaintiff's moving papers indicate notice of the conditional dismissal was ever served on Defendant. (1/21/2026 Minute Order.) The court also notes that Plaintiff's proposed order does not address the costs. Furthermore, the court has discretion to disregard issues which are first raised in a reply because the opposing party did not have an opportunity to address the issue.
(See Jay v. Mahaffey (2013) 218 Cal.App.4th 1522, 1537-1538.) Although the time to challenge the memorandum of costs by a motion tax has expired (Cal. Rules of Court, rule 3.1700) and Defendant has filed no such motion, the court reserves ruling on Plaintiff's

costs to allow oral argument concerning the timeliness of the memorandum of costs. (See *Tidrick v. FCA US, LLC* (2025) 112 Cal.App.5th 1147, 1155-1159.)

At the hearing on this motion, Plaintiff should be prepared to demonstrate that she served notice of the court's January 21, 2026, dismissal on Defendant and that the memorandum of costs was timely filed and served, and to explain why the request for costs and expenses is not included in the notice of motion, memorandum of points and authorities, or the proposed order.

CONCLUSION and ORDER

Motion for attorney fees is granted in the reduced amount of \$9,005.

The court reserves ruling on whether Plaintiff is entitled to her costs and expenses.

Plaintiff to give notice.

[1] The Jacobson Declaration mistakenly lists this rate as \$452. (Jacobson Decl. ¶ 48.)